Origin correction statements and communications

MIC transmitted two correction statements in 2024; accompanying communications and remittances remain part of the disputed administrative file.

Statement transmitted to two ports - OC-01

From: MIC Trade Compliance | Dated and received: 3 October 2024 | Submitted: authorised CBP entry-message channel

MIC corrects its preferential-origin declaration on the listed entries of IR24-6A industrial relays using MX-2023-01 or MX-2024-01. Production records for the purchased CB-4 board configurations m23-b and m24-b do not support the origin claim previously submitted. The pre-entry certificate was based on a prior production understanding and was not updated when the component procurement changed. The producer's verified material-cost schedule was supplied to us on September 17, 2024.

Concerned entry transactions: 372-4000004-7, 372-4000005-7, 372-4000007-7, 372-4000021-7, 372-4000022-7, 372-4000023-7, 372-4000024-7, 372-4000026-7. Ports for these transactions are Laredo and El Paso; the entry identifiers and dates can be reconciled to the attached entry account extract. The correct non-preferential classification is HTSUS 8536.41.00.20, general rate recorded on the entries as 2.7%; the commercial unit invoice price is USD 148 before any separate adjustments to customs value.

Where the true amount remains unknown, we will supply additional information within the permitted time. The corrected claims do not state whether independently financed tooling changes the value of any listed entry.

Acknowledgment and transfer advice for OC-01

From: OES entry services / importer finance | 4 - 29 October 2024

OES message, 4 October: We logged OC-01 with both concerned port contacts using the entry-account references. The systems unit will retain the original S flags in the historical summary extract but link an adjustment note to the affected entries. This acknowledgment is not agency acceptance of statutory penalty protection.

MIC payment instruction, 28 October: Remit USD 29,080.93 (calculated at 2.7% duty and ordinary MPF on the declared base amounts for the identified transactions). Treasury reference treas-24-or1. CBP posted the deposit October 29. The payment memo says this amount does not resolve potential additions to customs value or a claim of entitlement to offset other transactions.

Second statement - OC-02

From: MIC Trade Compliance | Received: 30 October 2024 | Filed through CBP-authorised correction channel

Our supplier advised us on October 21 that the EC-77 purchased-board configuration, including late-October EC-77b releases, does not support the origin claim. MIC corrects the S claims for the entries listed below. The board supplier item is PCA-690; the finished product remains IR24-6A. Some September dispatches were first entered before we received the verified EC-77 analysis; October dispatches used the same board family despite a revised warehouse release.

Concerned entry transactions: 372-4000031-7, 372-4000032-7, 372-4000033-7, 372-4000034-7, 372-4000035-7. The identified port and dates are in the reconciled entry summary. The company seeks correction of the historical preferential declaration, with a full entry-value review being conducted separately. Where additional true information was not available as of the statement, it will be provided within the applicable period.

MIC treasury instruction dated 20 November 2024: USD 18,665.90 for the claims listed in OC-02, using the same declared-value basis and general-duty/MPF calculation described in OC-01. Bank and CBP posting references appear in

the accounting extract.

Operations exception and related note

From: Orchard Entry Services to MIC | 6 and 21 November 2024

OES entry operations identified that the October 24 entry was transmitted with the S flag despite the October 23 instruction to stop using that preference for the EC-77 board. The transaction had been included in OC-02 at the client's request. Two later November entries were also transmitted with the previous setting after receiving a commercial release code m24-e for which the system block was not configured.

21 November: We have not received a separate corrected-origin statement identifying the November 5 and November 19 entries. The entry export continues to show those S claims. MIC requests confirmation of the exact entry message history and has not submitted an additional statement identifying them as of November 21.

Supplier / company discussion on the correction lists

From: RelayForge Dispatch QA | To: MIC customs analyst | 4 November 2024

Entry lists generated from commercial release codes are not necessarily physical run lists. For the April 18 truck, the commercial invoice used the new m24-b release but the exit scan may point to leftover m24-a finished stock. I have asked our QA group for the serial worksheet. The other CB-4 entries should be checked by the same technique rather than assumed to match invoice release codes.

MIC reply: We will preserve the entry record and separate the physical run issue from whether the correction document was filed promptly. Finance has tendered amounts for the entries in the statements, but has not determined the final allocation of any payment to a legally invalid claim.